

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alex Tuminello	Team: Team # 3	CCRB Case #: 201406762	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/07/2014 9:20 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/7/2016	Precinct: 70		
Date/Time CV Reported Tue, 07/08/2014 8:38 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/08/2014 8:38 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Pedro Almanzar	20768	949991	070 PCT
2. POM Thomas Shatinsky	25910	916681	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Rashid Pinckney	4501	935516	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Pedro Almanzar	Abuse: PO Pedro Almanzar stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM Thomas Shatinsky	Abuse: PO Thomas Shatinsky stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POM Pedro Almanzar	Abuse: PO Pedro Almanzar searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Substantiated

Case Summary

On July 7, 2014, at approximately 9:20 a.m., PO Pedro Almanzar and PO Thomas Shatinsky of the 70th Precinct stopped a vehicle in which § 87(2)(b) and § 87(2)(b) were occupants (Allegation A and B). During his interaction with officers, § 87(2)(b) stated that PO Almanzar was screaming and asked for § 87(2)(b)'s license and registration. PO Almanzar then walked over to § 87(2)(b)'s side of the car and § 87(2)(b) opened the door to step out. PO Almanzar then cuffed his left wrist and it took less than a minute to place § 87(2)(b) in handcuffs. While § 87(2)(b) was standing by the side of the car, PO Almanzar searched the inside of the vehicle and retrieved § 87(2)(b)'s wallet which he had left on the middle console. § 87(2)(b) could not specify where PO Almanzar searched but stated that it was around the front driver's seat (Allegation C).

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation because § 87(2)(b) was arrested in regards to the incident.
- As of March 20, 2015, § 87(2)(b) has not filed a notice of claim with the NYC Comptroller's Office in regards to this incident. (Encl. 25F).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED].

Civilian and Officer CCRB Histories

- This is first CCRB complaint filed by both § 87(2)(b) and § 87(2)(b) (Encl. 4A-4B).
- PO Almanzar has been a member of the service for 3 years and there are no substantiated CCRB allegations pleaded against him. § 87(2)(g)
[REDACTED]
- PO Shatinsky has been a member of the service for 19 years and there are no substantiated CCRB Allegations pleaded against him § 87(2)(g)
[REDACTED]

Civilian Statements

§ 87(2)(b) (Complainant/Victim) (Encl. 6A-6F)

- On July 16, 2014, § 87(2)(b) was interviewed at the CCRB.
- § 87(2)(b) is § 87(2)(b)'s wife. At the time of the incident, he was driving them from home to a school that they own at § 87(2)(b).
- While driving on § 87(2)(b) § 87(2)(b) indicated that he shifted his vehicle to the left to go around an idling SUV on the street, and that as he was to the left of the aforementioned SUV, he observed a marked police vehicle with lights on behind him.

- On July 7, 2014, § 87(2)(b)'s vehicle was stopped by PO Almanzar and PO Shatinsky. When he observed the police car with lights on behind his stopped car, he instructed his wife to go to work at the school and she exited the vehicle, at which time PO Almanzar ordered § 87(2)(b) back into the vehicle, which she did.
- § 87(2)(b) stated that PO Almanzar then stood at the front passenger side of the vehicle and began screaming while asking for § 87(2)(b)'s license and registration. § 87(2)(b) asked what was happening and PO Almanzar repeated, "License and registration." § 87(2)(b) responded, "Okay, you can close the door. Leave my wife alone and come to me on the driver's side as everyone does." PO Almanzar then stated, "If you don't give it to me over here, I am going to arrest you." § 87(2)(b) then said, "Come over here, and take what you need." PO Almanzar then stated, "If I come over there, I am arresting you."
- PO Almanzar then walked over to § 87(2)(b)'s side of the car and § 87(2)(b) opened the door to step out. PO Almanzar then cuffed his left wrist and it took less than a minute to place § 87(2)(b) in handcuffs. While § 87(2)(b) was standing by the side of the car, PO Almanzar searched the inside of the vehicle and retrieved § 87(2)(b)'s wallet which he had left on the middle console. § 87(2)(b) could not specify where PO Almanzar searched but stated that it was around the front driver's seat. § 87(2)(b) was then placed into a marked vehicle and transported to the 70th Precinct stationhouse.
- § 87(2)(b) stated that he did not commit any traffic violations on the date of the incident.

Video Footage

- On July 25, 2014, the CCRB received video footage of this incident from § 87(2)(b). This video was taken from the front of a nearby building on § 87(2)(b) in Brooklyn directly outside from where this incident occurred (Encl. 21A).
- The video shows that at approximately 9:21 a.m., a black Lexus pulls up to the right side of § 87(2)(b) and a female, identified by the investigation as § 87(2)(b) exits the Lexus' front passenger door and starts to walk towards a marked police vehicle. An officer, identified as PO Almanzar, then exits the police vehicle and gestures towards § 87(2)(b) and the Lexus, after which § 87(2)(b) re-enters the front passenger seat of the Lexus. An officer, identified as PO Shatinsky, then exits the police vehicle and stands at the rear of the Lexus. A man, identified by the investigation as § 87(2)(b) is also seen walking towards the stopped Lexus. § 87(2)(b) remains outside the stopped Lexus and is wearing a shirt that states, "Staff." PO Almanzar is seen talking through the front passenger side window of the Lexus for several seconds, after which he walks around the back of the Lexus and pulls a man, identified by the investigation as § 87(2)(b) out of the driver's seat of the Lexus. Once out of the vehicle, § 87(2)(b) pulls his right arm up and flails his body as PO Almanzar attempts to handcuff him. § 87(2)(b) also attempts to keep his arms in front of his body and it takes PO Almanzar several seconds to handcuff him. Upon placing § 87(2)(b) in the police vehicle, an officer identified as Sgt. Rashid Pinckney and an unidentified male officer appear at the marked vehicle. PO Almanzar walks back towards the Lexus and opens the front driver's side door. He then leans his head into the vehicle for approximately seven seconds, after which he removes his head from the vehicle and speaks with § 87(2)(b). PO Almanzar then reaches his arm into the vehicle for a second and proceeds to hand a piece of paper to § 87(2)(b).

§ 87(2)(b) (VICTIM) (Encl. 8A-8D)

- On September 2, 2014, § 87(2)(b) was interviewed at the CCRB.

- § 87(2)(b) was seated in the front passenger seat of § 87(2)(b)'s vehicle when they were stopped by PO Almanzar and PO Shatinsky on the date of the incident. § 87(2)(b) stated that upon exiting the vehicle, PO Almanzar screamed, "Get back to the vehicle!" § 87(2)(b) asked, "Why what is going on?" as she was unsure as to why the vehicle was being stopped by police.
- § 87(2)(b) entered back into the vehicle through the front passenger door and sat down in the vehicle. PO Almanzar then approached the vehicle from the front passenger side and requested § 87(2)(b)'s license and registration. In response § 87(2)(b) stated, "You need to come to my side." PO Almanzar then stated, "If you don't give me the documents, I am going to arrest you."
- PO Almanzar then approached the driver's side of the vehicle and asked § 87(2)(b) to exit the vehicle. § 87(2)(b) then exited the vehicle and PO Almanzar attempted to place his hands behind his back. § 87(2)(b) stated that at no point did § 87(2)(b) resist and he was placed in a marked vehicle and taken to the 70th Precinct stationhouse.
- § 87(2)(b) stated that after her husband was arrested and placed in a marked police vehicle, PO Almanzar entered their vehicle through the front driver's side door and searched the driver's area for paperwork. The search only lasted a few minutes before § 87(2)(b) stated, "This is my car, if you need anything ask." PO Almanzar stated, "Oh this is your vehicle, show me the paperwork." § 87(2)(b) presented the paperwork and PO Almanzar presented her the keys to the vehicle.

§ 87(2)(b) (WITNESS) (Encl. 10A-10F)

- On September 11, 2014, § 87(2)(b) was interviewed at the CCRB. § 87(2)(b) is the son-in-law of § 87(2)(b) and § 87(2)(b).
- On the date of the incident, § 87(2)(b) was walking back from a deli which is located 100 feet from the school he works at. He stated that he observed his in-laws, § 87(2)(b) and § 87(2)(b) in a black Lexus with a marked police vehicle parked behind them in front of § 87(2)(b).
- § 87(2)(b) stated that as § 87(2)(b) exited the vehicle, PO Almanzar instructed her to, "Get back in the car." § 87(2)(b) stated that § 87(2)(b) did not seem to notice the command was being directed at her and PO Almanzar again stated, "Get back to your car, you are being pulled over." § 87(2)(b) then stated, "Are you talking to me?" § 87(2)(b) then walked back to the vehicle and asked, "Is everything ok?"
- PO Almanzar then stated, "I need your license, I need your license." § 87(2)(b) told the officer to come to his side of the vehicle. PO Almanzar then stated to § 87(2)(b) "You are getting pulled over, give me your license." § 87(2)(b) then approached the trunk area of the Lexus and asked PO Shatinsky if everything was ok.
- PO Almanzar and § 87(2)(b)'s conversation only lasted a few seconds before PO Almanzar opened the front driver's door and grabbed § 87(2)(b)'s wrist. PO Almanzar then stated, "Get out" two times and stood him up. PO Almanzar then placed § 87(2)(b) in handcuffs.
- § 87(2)(b) stated that he did not know if a vehicle search occurred.

§ 87(2)(b) (WITNESS) (Encl. 12A-12E)

- On October 27, 2014, § 87(2)(b) was interviewed at the CCRB. § 87(2)(b) is the daughter of § 87(2)(b) and § 87(2)(b).
- § 87(2)(b) was not present at § 87(2)(b) for this incident, but stated that she accompanied her mother to the 70th Precinct stationhouse where § 87(2)(b) was being held after he was arrested.

- PO Almanzar spoke with both woman at the stationhouse and explained that § 87(2)(b) was pulled over for driving on the wrong side of the road. He also stated that § 87(2)(b) was obstructing justice and not listening to an officer's commands.
- PO Almanzar then stated that if § 87(2)(b) did not get back into the car, he would of arrested her too. Both women asked, "Why?" PO Almanzar stated that § 87(2)(b) had to listen to them. § 87(2)(b) stated, "Why would of you arrested me? I am going to work and we didn't see you."

§ 87(2)(b) (WITNESS) (Encl. 14A-14F)

- On November 12, 2014, § 87(2)(b) was interviewed at the CCRB. § 87(2)(b) worked with § 87(2)(b) at the day camp located at § 87(2)(b) § 87(2)(b).
- On the date of the incident, § 87(2)(b) was standing outside of 2901 § 87(2)(b) smoking cigarette before she went into work. § 87(2)(b) observed § 87(2)(b) and § 87(2)(b) seated in a dark colored sedan parked in front of the school. A marked police vehicle was also parked approximately three car lengths behind § 87(2)(b)'s vehicle with its lights on. § 87(2)(b) also observed a school bus parked in between the vehicles.
- § 87(2)(b) then exited the sedan from the front passenger seat and PO Almanzar exited the police vehicle and stated, "Get back in the car, get back in the car!" PO Almanzar asked § 87(2)(b) to get back to the vehicle approximately 6 to 7 times and she inquired each time as to what was going on. PO Almanzar then grabbed § 87(2)(b)'s right upper arm and stated, "Ma'am you need to get back into your car." § 87(2)(b) then stated from his vehicle, "Take your hands off of my wife! What is going on?" § 87(2)(b) then became argumentative with the officers and stated, "Why are you touching me? Why do I need to get back in the car?" § 87(2)(b) then exited the vehicle and approached the officers to inquire in regards to what was going on.
- § 87(2)(b) was unsure as to which officer stated this but § 87(2)(b) was told, "Get back to your car or we are going to arrest you." § 87(2)(b) was then told an additional four to five times, "You need to get back in the car." § 87(2)(b) was then told that he was being placed under arrest. As the handcuffs were applied, § 87(2)(b) began to squirm his body and tried to pull his arms to the front of his body. Upon being handcuffs, § 87(2)(b) was placed in a marked vehicle. § 87(2)(b) did not mention that a vehicle search was conducted by any officers on the date of the incident.

Officer Statements

PO PEDRO ALMANZAR (SUBJECT OFFICER) (Encl. 17A-17D)

- On December 4, 2014, PO Almanzar was interviewed at the CCRB.
- PO Almanzar stated that on the date of the incident, he was located in the front passenger seat of a marked police vehicle in which PO Shatinsky was the driver. The officers both observed an individual identified by the investigation as § 87(2)(b) drive his vehicle over a yellow line on the road. PO Shatinsky then turned on the lights and sirens to the vehicle and pulled § 87(2)(b)'s vehicle over on § 87(2)(b).
- PO Almanzar initially stated that he conducted a plain-view search of the vehicle immediately after § 87(2)(b) was arrested. Upon being presented the video which was provided by § 87(2)(b) PO Almanzar recalled that a search of the vehicle was conducted after § 87(2)(b) was placed into the marked police vehicle. PO Almanzar identified himself as the officer that re-approached § 87(2)(b)'s vehicle and stated that he did so in order to observe the center console of the vehicle. He did not recall opening the front driver's side door but identified himself as doing so in the video. PO Almanzar stated that

he never stepped into the vehicle and just leaned over to make an observation into the center console. He stated that he only looked into the console and when asked, he did not provide any reasons as to why he looked into the console except to make an observation.

PO THOMAS SHATINSKY (WITNESS OFFICER)

- The investigation was unable to interview PO Shatinsky because he is on terminal leave until August of 2015 and is retiring immediately after his vacation is over.

SGT. RASHAD PINCKNEY (WITNESS OFFICER) (Encl. 19A-19C)

- On January 22, 2015, Sgt. Pinckney was interviewed at the CCRB. Sgt. Pinckney was the Patrol Supervisor on the date of the incident and PO Almanzar stated that he arrived at the location after § 87(2)(b) was arrested.
- Sgt. Pinckney did not have a recollection of this incident. Sgt. Pinckney was presented video footage of the incident and identified himself as arriving at the location after PO Almanzar arrested § 87(2)(b). Sgt. Pinckney identified PO Almanzar as the officer in the video that approached a black vehicle. He did not recall why he approached the vehicle or why he opened the front driver's side door.

NYPD Documents

- § 87(2)(a) 160.50 [REDACTED]
- The Tour 2 Command Log from July 7, 2014 indicates that at approximately 9:45 a.m., § 87(2)(b) was logged into the stationhouse by PO Almanzar. His physical and mental condition is listed as apparently normal. § 87(2)(b) was then transported to Brooklyn Central Booking at 4:14 p.m. via RMP number 8886 (Encl. 23A-23F).
- According to the Tour 2 Roll Call from July 7, 2014, PO Almanzar and PO Shatinsky were working inside of RMP number 3991 and were assigned to sectors E and F (Encl. 24A-24M). Sgt. Pinckney is listed as the Patrol Supervisor.

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]

§ 87(2)(g)

Explanation of Subject Officer Identification

§ 87(2)(b) and § 87(2)(b) both identified PO Almanzar by his name to the CCRB as one of the officers that was involved in the stop of their vehicle. § 87(2)(b) received PO Almanzar's name off of his arrest paperwork. § 87(2)(b) stated that she read PO Almanzar's name and shield number off of his uniform during their interaction. PO Almanzar acknowledged stopping § 87(2)(b) and § 87(2)(b)'s vehicle on the date of the incident, and according to his memo book and the Tour 2 Roll Call from July 7, 2014, his partner on the date of incident was PO Thomas Shatinsky. § 87(2)(g)

§ 87(2)(b) identified PO Almanzar as the officer that entered and searched her black Lexus on the date of the incident. § 87(2)(b) stated that upon being handcuffed, PO Almanzar entered and searched the vehicle. He did not mention observing a search of the vehicle after he was placed in the marked police vehicle. PO Almanzar identified himself as the officer that leaned into their vehicle based upon video footage acquired from the incident. § 87(2)(g)

Recommendations

Allegation A: Abuse of Authority- PO Pedro Almanzar stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation B: Abuse of Authority- PO Thomas Shatinsky stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) stated that upon making a right onto § 87(2)(b), he noticed a marked RMP behind him with his lights on. § 87(2)(b) stated that he did not commit any traffic violations on the date of the incident, however he did indicate that he shifted his vehicle to the left while driving on § 87(2)(b) to go around an idling SUV while the marked police vehicle was behind him. § 87(2)(b) stated that upon being dropped off at work, she exited the vehicle and then heard PO Almanzar scream, "Get back into the vehicle!" § 87(2)(b) asked, "Why what is going on?" She did not know why the officers had stopped them.

PO Almanzar stated that on the date of the incident, he was located in the front passenger seat of a marked vehicle in which PO Shatinsky was the driver. PO Almanzar observed an individual identified by the investigation as § 87(2)(b) drive his vehicle, a 2012 black Lexus over a yellow line in the road. PO Shatinsky then turned on the lights and sirens to the vehicle and pulled his over on § 87(2)(b). § 87(2)(b)'s arrest report indicates that he was charged with one count of reckless driving and one count of failure to obey a traffic device, among other charges.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C: Abuse of Authority- PO Pedro Almanzar searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) stated that upon being handcuffed by PO Almanzar, he stood directly outside of his vehicle. At this time, § 87(2)(b) observed PO Almanzar search the inside of the vehicle and retrieve § 87(2)(b)'s wallet which was located on the middle console as well as his phone. § 87(2)(b) could not specify where specifically PO Almanzar searched from his vantage point, but stated that it was around the driver's seat. § 87(2)(b) stated that PO Almanzar entered their vehicle through the front driver's door and searched for paperwork. The search only lasted a few minutes before § 87(2)(b) explained to PO Almanzar, "This is my car, if you need anything ask." PO Almanzar then stated to § 87(2)(b) "Oh this is your vehicle, show me the paperwork." Once the paperwork was shown by § 87(2)(b) PO Almanzar handed her the keys to the vehicle. § 87(2)(b) stated that he was unsure as to whether or not the vehicle was searched and § 87(2)(b) did not mention a vehicle search during her CCRB statement.

Video footage of the incident indicates that after § 87(2)(b) was placed in the marked police vehicle, PO Almanzar walked back towards § 87(2)(b)'s Lexus and opened the front driver's side door. § 87(2)(b) is seen on the video following PO Almanzar to the vehicle but before she arrives, he leans into the vehicle and looks inside with his upper body breaking the plane of the vehicle for approximately seven seconds. He then brings his head back out of the vehicle and speaks with § 87(2)(b). PO Shatinsky then approaches the vehicle and § 87(2)(b) takes a step back. PO Almanzar leans back into the vehicle for a second then pops his head out again and reaches back into the driver's side door for a second. He then hands a piece of paper to § 87(2)(b) and the video concludes with them talking at the back of the vehicle.

During his CCRB statement, PO Almanzar initially stated that he conducted a plain-view search of the vehicle immediately after § 87(2)(b) was arrested. Upon being presented the video, PO Almanzar recalled that a search of the vehicle was conducted after § 87(2)(b) was placed into the marked police vehicle. PO Almanzar identified himself as the officer that re-approached the vehicle and stated that he did so in order to observe the center console. He did not recall opening the front driver's side door but identified himself as doing so in the video. PO Almanzar stated that he never stepped into the vehicle and just leaned over to make an observation into the center console. When asked why he looked in the console, PO Almanzar did not provide any reasons as to why he looked into the console except to make an observation. § 87(2)(a) 160.50

The investigation was unable to interview PO Shatinsky in regards to the incident because he is currently on terminal leave until August of 2015 and is retiring immediately after his vacation is over.

The police must not only have probable cause to search the vehicle but that there must also be a nexus between the arrest and the probable cause to search. *People v. Blasich*, 73 N.Y. 2d 673 (1993) (Encl. 2A-2D). The sole predicate for the search was the commission of an ordinary traffic infraction, which, standing alone, will not justify a search of the vehicle. The right to privacy protects against unreasonable police intrusions. In this type of situation, an officer may not bend his head into a car to conduct a visual inspection of what would otherwise be hidden from plain view, which amounts to an unreasonable search. *People v. Aquino*, 119 A.D. 2d 464 (1st Dept. 1986) (Encl. 2E-2F).

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

It is therefore recommended that Allegation B be closed as **substantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date